

Terms of Service

Customer Agreement for the Northstar Platform

Northstar Cloud Systems, Inc. | Effective Date: January 1, 2026

These Terms of Service ("Terms") govern access to and use of the cloud software and related services (the "Service") provided by Northstar Cloud Systems, Inc. ("Northstar," "we," "us," or "our"). By creating an account, executing an order form, or using the Service, the customer ("Customer," "you") agrees to these Terms and any applicable order form or service-specific terms incorporated by reference.

1. Accounts and Responsibilities

Customer must provide accurate account information, maintain the confidentiality of its account credentials, and promptly notify Northstar of any suspected unauthorized access to its account. Customer is responsible for all activity performed through its account, except to the extent such activity results from Northstar's breach of its obligations under these Terms.

Customer may designate authorized administrators who may manage users, configure security settings, and access billing information on Customer's behalf. Customer is responsible for promptly removing administrator access for personnel who no longer require it.

2. Customer Content

As between the Parties, Customer retains all ownership rights in content it submits to the Service ("Customer Content"). Customer grants Northstar a limited, non-exclusive, worldwide right to host, copy, transmit, process, and display Customer Content solely as reasonably necessary to provide, secure, maintain, and support the Service, and as otherwise expressly permitted by these Terms, the Privacy Policy, or a separate written agreement between the Parties. Nothing in this Section transfers ownership of Customer Content to Northstar.

3. Acceptable Use

Customer, and anyone acting on Customer's behalf, may not use the Service to: violate applicable law; gain or attempt to gain unauthorized access to systems, networks, or accounts; distribute malware or other harmful code; interfere with or disrupt the integrity or performance of the Service; circumvent or attempt to circumvent security or access controls; conduct abusive automated activity, including scraping that degrades Service performance; infringe the intellectual property, privacy, or other rights of any person; or facilitate fraud or other unlawful conduct.

Northstar may investigate suspected violations of this Section and may suspend access where reasonably necessary to prevent harm to the Service, other customers, or third parties, consistent with the suspension and termination provisions of Section 11.

4. Privacy

Northstar's collection and use of personal information in connection with the Service is described in the Northstar Privacy Policy, which is incorporated into these Terms by reference. These Terms do not authorize, and shall not be construed to authorize, Northstar to collect, use, share, sell, or retain personal information in any manner inconsistent with the Privacy Policy. Where a separate written agreement between the Parties contains specific data-processing obligations — for example, a Data Processing Addendum — those obligations apply to the extent stated in that agreement, in addition to and not in place of the Privacy Policy.

5. Confidentiality

Confidential information exchanged between the Parties under a separate non-disclosure or confidentiality agreement remains subject to the terms of that agreement. Nothing in these Terms is intended to remove, reduce, or otherwise affect the confidentiality protections the Parties have separately agreed to.

6. Intellectual Property

Northstar and its licensors retain all right, title, and interest in and to the Service, including its software, underlying technology, documentation, templates, and branding. Except for the limited rights expressly granted in these Terms, no intellectual property rights are transferred to Customer. Customer retains all rights in its trademarks, and no license to use Customer's trademarks is granted except as necessary to identify Customer as a Northstar customer with Customer's prior written consent.

7. Fees, Billing, and Cancellation

Paid subscriptions are billed in accordance with the applicable order form or published pricing page. Customer is responsible for all applicable taxes other than taxes on Northstar's net income. Cancellation prevents future renewal but does not, by itself, eliminate fees already incurred prior to the effective date of cancellation. Northstar may suspend or terminate access for non-payment following reasonable notice and an opportunity to cure, subject to applicable law and the terms of the applicable order form.

8. Availability, Security, and Disclaimers

Northstar maintains commercially reasonable administrative, technical, and physical safeguards designed to protect the Service and the information processed through it. The Service may be temporarily unavailable for scheduled maintenance, emergency maintenance, or events outside Northstar's reasonable control. Except as expressly stated in a separate Service Level Agreement, Northstar does not warrant uninterrupted or error-free availability of the Service.

To the maximum extent permitted by applicable law, the Service is provided without implied warranties except those that cannot lawfully be excluded. Northstar does not warrant that the Service will meet every business requirement of Customer.

9. Limitation of Liability

To the maximum extent permitted by applicable law, neither Party will be liable for indirect, incidental, special, consequential, exemplary, or punitive damages arising out of or related to these Terms. Except for liabilities that cannot lawfully be limited, each Party's aggregate liability arising out of or related to the Service will not exceed the fees paid or payable by Customer for the Service during the twelve (12) months immediately preceding the event giving rise to the claim.

10. Changes to These Terms

Northstar may update these Terms from time to time. Where practicable, Northstar will provide reasonable advance notice of material changes by email or through the Service. Continued use of the Service after the effective date of an updated version of these Terms may constitute acceptance of the updated Terms where legally permitted.

11. Suspension and Termination

Northstar may suspend or terminate Customer's access to the Service for material breach of these Terms, unlawful use of the Service, a security risk to the Service or other customers, or non-payment, subject to

applicable notice and cure requirements described in the applicable order form. Upon termination, Customer's right to use the Service ends. Provisions that by their nature should survive termination — including ownership of Customer Content, confidentiality, payment obligations accrued prior to termination, disclaimers, limitations of liability, and dispute resolution provisions — will survive.

12. Governing Terms and Order of Precedence

Any order form, master services agreement, or other written agreement signed by the Parties may contain additional or different terms. If a conflict exists between such an agreement and these Terms, the signed agreement controls to the extent of the conflict. These Terms do not override, and shall not be construed to override, any separate confidentiality or data-processing obligations agreed between the Parties unless expressly and specifically stated.

13. Notices

Northstar may provide notices under these Terms by email to the address associated with Customer's account, or by posting notice within the Service. Customer must provide notices to Northstar in writing to the address identified in the applicable order form, with a copy to legal@northstarcloud.example.

14. Contact

Questions regarding these Terms may be submitted to legal@northstarcloud.example. Questions regarding the handling of personal information should be directed to privacy@northstarcloud.example, or to the contact identified in the Privacy Policy.

15. Definitions

“Affiliate”

An entity that controls, is controlled by, or is under common control with a Party.

“Documentation”

The user guides, help-center articles, and technical documentation Northstar makes generally available describing use of the Service.

“Order Form”

A document, executed by both Parties or accepted electronically, specifying the subscription plan, fees, and term purchased by Customer.

“Service Level Agreement” or “SLA”

A separate document, if applicable to Customer's subscription plan, specifying uptime commitments and associated remedies.

16. Data Processing and Export Compliance

To the extent Northstar processes personal information subject to the General Data Protection Regulation, the UK GDPR, the California Consumer Privacy Act, or similar data protection law on Customer's behalf, the Parties will execute a Data Processing Addendum governing such processing, which is incorporated into these Terms upon execution. Customer represents that its use of the Service will comply with applicable export control and economic sanctions laws, and Customer will not use the Service in any jurisdiction or for any purpose prohibited by such laws, including transactions involving persons or entities on applicable restricted-party lists.

17. Insurance

Northstar maintains commercially reasonable levels of commercial general liability, cyber liability, and professional liability insurance appropriate to the scale of the Service. Certificates of insurance are available upon reasonable written request, subject to standard confidentiality terms with respect to policy limits and coverage terms.

18. Force Majeure

Neither Party will be liable for any failure or delay in performance under these Terms, other than payment obligations, to the extent caused by circumstances beyond its reasonable control, including acts of God, natural disaster, war, terrorism, labor disputes, internet or utility failures, or governmental action, provided the affected Party uses commercially reasonable efforts to mitigate the impact and resume performance.

19. Dispute Resolution

The Parties will attempt in good faith to resolve any dispute arising out of or relating to these Terms through direct negotiation between designated representatives before initiating formal proceedings. If a dispute is not resolved within thirty (30) days of written notice, either Party may pursue any remedy available at law or in equity in a court of competent jurisdiction as described in the applicable Order Form, except that either Party may seek injunctive relief in any court of competent jurisdiction at any time to prevent irreparable harm.

20. General Provisions

These Terms, together with any Order Form and any Data Processing Addendum, constitute the entire agreement between the Parties regarding the Service and supersede all prior or contemporaneous agreements regarding its subject matter. No waiver of any provision of these Terms will be effective unless in writing and signed by the waiving Party, and no failure to enforce any provision will constitute a waiver of future enforcement. Neither Party may assign these Terms without the other Party's prior written consent, except in connection with a merger, acquisition, or sale of substantially all assets, provided the assignee agrees to be bound by these Terms. If any provision of these Terms is held unenforceable, the remaining provisions will continue in full force and effect.

21. Support and Maintenance

Northstar provides standard support during posted business hours through the support channel identified in the Service, and will use commercially reasonable efforts to respond to support requests within the timeframes described in the applicable Order Form or support policy. Northstar may perform scheduled maintenance from time to time and will provide advance notice of maintenance reasonably expected to affect Service availability, except in emergency circumstances.

22. Beta and Preview Features

Northstar may make features available on a beta, preview, or early-access basis, identified as such in the Service or accompanying documentation. Beta features are provided "as is," without warranty, may be modified or discontinued at any time without notice, and may not be subject to the same security, availability, or support commitments as generally available features. Customer Content submitted to a beta feature remains subject to Section 2, the Privacy Policy, and Section 4 of these Terms.

23. Indemnification

Northstar will defend Customer against any third-party claim alleging that Customer's authorized use of the Service infringes that third party's intellectual property rights, and will indemnify Customer against damages finally awarded, provided Customer promptly notifies Northstar of the claim, gives Northstar sole control of the defense and settlement, and provides reasonable cooperation. Northstar's obligations under this Section do not apply to claims arising from Customer Content, from Customer's use of the Service in combination with products or services not provided by Northstar, or from Customer's use of the Service in violation of these Terms.

Customer will defend, indemnify, and hold Northstar harmless from third-party claims arising from Customer Content or from Customer's use of the Service in violation of Section 3 (Acceptable Use) or applicable law, subject to the same procedural conditions described above.